
IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CIVIL APPELLATE JURISDICTION
WRIT PETITION NO. 5889 OF 2026

Neha Raj Thakur

.. Petitioner

Versus

Assessment Unit, Income Tax
Department, New Delhi & Ors

.. Respondents

Mr. Devendra Jain (through VC), i/b. Kumar Kale,
Advocates for the Petitioner.

Mr. Akhileshwar Sharma, *Advocates for the Respondents /*
Revenue.

ANJALI
TUSHAR
ASWALE

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CORAM: B. P. COLABAWALLA &
FARHAN P. DUBASH, JJ.
DATE: SEPTEMBER 16, 2026

P. C.

1. Rule. Respondents waive service. With the consent of the parties, Rule is made returnable forthwith and heard finally.

2. This Writ Petition challenges Assessment Order dated 12th March 2026 passed under Section 143(3) read with Section 144B of the Income Tax Act, 1961 (for short “the **IT Act**”), passed by Respondent No.1 and also the consequential Notice of Demand dated 12th March 2026 issued under Section 156 of the IT Act. Further, the Show Cause Notices dated 12th March 2026 for

initiating penalty proceedings under Section 270A and 271AAC(1) of the IT Act are also assailed.

3. Mr. Devendra Jain, the learned Counsel for the Petitioner submitted that Respondent No.1 passed the impugned Assessment Order dated 12th March 2026 in gross violation of the principles of natural justice as well as the provisions of Section 144B of the IT Act. He further submitted that on 24th February 2026, a request was made to Respondent No.1 by the Petitioner for a personal hearing through Video Conference (for short “VC”) so that the Petitioner could properly explain her case. Accordingly, Respondent No.1 scheduled a VC on 27th February 2026 at 3:00 PM. It was further informed by Respondent No.1 that the VC link and the VC password would be displayed 2 hours prior to the VC scheduled time.

4. The Petitioner submitted that Respondent No.1 sent an email from its official email ID [efilingwebmanager@ incometax.gov.in](mailto:efilingwebmanager@incometax.gov.in) to the email ID of the Petitioner enclosing the link and password of the VC at 4:15 p.m. on 27th February 2026, for the VC scheduled at 3:00 p.m. i.e., more than one hour after the scheduled time of the VC. The copy of the email received from [efilingwebmanager@ incometax.gov.in](mailto:efilingwebmanager@incometax.gov.in) is annexed in the Petition. The Petitioner submitted that she has not received any other communication by

way of email or SMS or any other mode from Respondent No.1 providing the VC link and the VC password, and therefore, was unable to avail the personal hearing at the scheduled time. Thus, effectively, the Petitioner was denied an opportunity of being heard before passing the impugned Assessment Order.

5. The learned Counsel for the Petitioner further submitted that the Show Cause Notice dated 20th February, 2026 was received by the Petitioner on the same date at 1:50 p.m., via email, and the time allowed for filing a response to this Show Cause Notice was allowed till 12:03 p.m. on 24th February 2026. The Petitioner was, therefore, allowed only four days' time to respond to this Show Cause Notice. Since 21st February 2026 and 22nd February 2026 were Saturday and Sunday, the Petitioner was effectively allowed only 2 working days to respond to this Show Cause Notice. The Petitioner submitted her reply to the Show Cause Notice, to the extent it was possible in the limited time available. The learned Counsel for the Petitioner submitted that this act of Respondent No.1 was thus in clear violation of the Standard Operating Procedure dated 3rd August 2022 (for short '**SOP**') issued by the CBDT. Paragraph No.1.3 of the SOP clearly provides that a response time of 7 days [from the date of issuance of the Show Cause Notice] should be provided to the Assessee to submit his reply. For all the aforesaid reasons, the Writ Petition be allowed, was the submission of the Petitioner.

6. On the other hand, Mr. Sharma, the learned Counsel appearing on behalf of the Revenue, on instructions from Respondent No. 2, the Jurisdictional Assessing Officer, states that the system records that the VC was scheduled for 27.02.2026 at 03:00 p.m. and an SMS intimating the VC was sent on 26.02.2026 at 05:40 p.m. However, the exact delivery time of the VC notice/link on the e-Filing portal is not presently available in ITBA. Mr. Sharma, however, submitted that due to a technical glitch, at times, the delivery of email containing the link and password of the VC is delayed.

7. We have heard the learned Counsel for the parties and also perused the papers and the proceedings in the above Writ Petition. We find that the Petitioner's grievance in this Writ Petition is well-founded. We find that Respondent No.1 had scheduled the VC at 3:00 p.m. on 27th February 2026, but the link and password for this VC was sent to the Petitioner by email at 4:15 p.m. on 27th February 2026, making it impossible for the Petitioner to access the scheduled VC. This effectively denied the Petitioner a personal hearing that is mandated by the law. We also find merit in the argument advanced on behalf of the Petitioner that Respondent No.1 ought to have provided at least 7 days' time to respond to the Show Cause Notice as per the SOP dated 3rd August 2022. Respondent No.1 had, however, provided

only 4 days' time to the Petitioner to respond to the Show Cause Notice dated 24th February 2026, which is contrary to the SOP. We, therefore, find that in the present case, the impugned Assessment Order dated 12th March 2026 was passed in gross violation of the principles of natural justice, and therefore, requires interference by this court under Article 226 of the Constitution of India.

8. In view of the foregoing discussion, the following order is passed:

- a) The impugned Assessment Order dated 12th March 2026 is hereby quashed and set aside. Since we have quashed the Assessment Order, all proceedings/Notices/Orders emanating therefrom cannot survive, and therefore, are also quashed and set aside.
- b) The assessment proceedings are remanded to Respondent No.1 for passing a fresh Assessment Order in strict compliance of the provisions of Section 144B of the IT Act.
- c) The Petitioner shall file her response to the Show Cause Notice within a period of two weeks from the date when the Income Tax

Department opens the Portal to enable the Petitioner to file her response.

- d) Respondent No.1 shall grant a personal hearing to the Petitioner by giving 7 days' prior notice.
- e) Respondent No.1 shall pass a fresh Assessment Order after considering the Petitioner's response to the Show Cause Notice as well as the submissions, if any, made during the personal hearing.
- f) This entire exercise shall be completed by Respondent No.1 on or before 30th November 2026.

9. Rule is made absolute in the aforesaid terms and the Writ Petition is also disposed of in terms thereof. However, there shall be no order as to costs.

10. A copy of this order shall be submitted by the Petitioner to Respondent No. 2, the Jurisdictional Assessing Officer who shall forthwith transmit/ convey this order to the NFAC for reopening the portal for the

Petitioner to submit her response.

11. This order will be digitally signed by the Private Secretary/
Personal Assistant of this Court. All concerned will act on production by fax
or email of a digitally signed copy of this order.

[FARHAN P. DUBASH, J.]

[B. P. COLABAWALLA, J.]